

The Facts at issue in Attachment One to Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

3. 9:00 AM CASE NUMBER: L25-08135
CASE NAME: SYNCHRONY BANK VS. MARISSA HARVEY
*HEARING ON MOTION IN RE: COMPEL ARBITRATION AND STAY PROCEEDINGS
FILED BY:
TENTATIVE RULING:

Defendant Marissa Harvey's No response has been filed by the Plaintiff.

Background

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

Analysis

Defendant's motion contends that the parties' contract "contains a mandatory arbitration clause ..." See Declaration of Marissa Harvey in support of her motion, along with Exhibit A, (Cardmember agreement with "Arbitration Clause")

Defendant's motion constitutes a demand and notice to arbitrate. See Arbitration Clause, ¶7.

Accordingly, the Court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as pled in the operative Complaint by Plaintiff. The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the agreement to arbitrate.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. Defendant shall initiate the arbitration process in accordance with the Arbitration

Agreement and any applicable rules of the Arbitration Agreement.

3. The pending action is STAYED pursuant to Code Civ. Proc. Section 1281.4
4. Further hearing: Parties to appear for a CMC on May 8, 2026, 9 a.m. to report on the status of the Arbitration.
5. Plaintiff to draw and file the Order.